said: "Suppose there is an adverse IB report, we have to verify it. We cannot blindly forward it."

Some even seek to attribute political motives to these delays by the BJP-led Union government. Amongst the 25 high courts, the ones with the highest percentage of names still pending with the Centre are the Bombay High Court (65 per cent of all names sent by it to the Union law ministry), Calcutta High Court (47 per cent) and Rajasthan High Court (33 per cent). Critics point out that these courts are located in states governed by non-BJP parties. They also have a very high share of vacancies—48 per cent of the total sanctioned strength of judges in the Rajasthan High court, 46 per cent in the Calcutta High Court and 38 per cent in the Bombay High Court.

However, BJP-ruled states fare no better, going by the percentages of judges' vacancies in their high courts. For instance, 48 per cent of the sanctioned strength of judges in the Patna High Court lie vacant; 42 per cent in the Allahabad High Court and and 38 per cent in the Gujarat High Court. Even during UPA rule, judicial vacancies in high courts hovered around 30 per cent. The bigger problem lies with names that are not cleared despite having been re-sent by the collegium several times. Between January 1, 2021 and February 1, 2022, the SC collegium reiterated 29 recommendations at least once. The Centre had cleared none till April 11.

"The delay in clearing reiterated appointments is a way of the executive telling the SC that we are the masters of appointments, regardless of your opinion. Besides, the waiting time has significantly increased in the past few years and, more worryingly, in selective cases. The Union law minister and the Chief Justice of India should sort out these and other problems," says Justice Lokur.

DELAYS IN THE APPOINTMENT OF JUDGES DESPITE REITERATIONS BY THE SC COLLEGIUM DO NOT ENCOURAGE SENIOR LAWYERS TO JOIN THE JUDGESHIP

Legal experts say that such delays, despite multiple reiterations by the SC collegium, can demoralise potential candidates. The apex court has said that keeping names pending for long periods does little to encourage senior lawyers to join the judgeship. The Sushil Modi-led standing committee has also pointed out its effects—because of delays in appointments, many lawyers have started saying no to such appointments.

For instance, in February 2022, senior advocate Aditya Sondhi withdrew his consent for elevation, citing a delay of a year. His name was recommended for a position of a judge at the Karnataka High Court in February 2021 and reiterated in September 2021. "No respectable lawyer is prepared to wait ad infinitum and thus there have been a spate of refusals by them," read the Standing Committee report in March 2022.

Rijiju claims the government has "never deliberately" delayed appointments. Claiming that file clearances are much faster now, he pointed out that two apex court judges were appointed in May within 48 hours of recommendations. He also invoked the fact that the Supreme Court itself had stated that the government must act on the selection of judges only after proper due diligence, which takes time. In an affidavit filed in the apex court, the Centre said that it appointed 77 per cent of the judges recommended to various high courts by the SC collegium between January 1, 2021, and January 30, 2022. A Supreme Court order in 2019 said that the names on which the SC Collegium, the high courts and the governments had agreed upon should be appointed within six months. The affidavit claimed that the Centre took an average of 41 days, or six weeks, from the date of final resolution of the SC collegium to the appointment of judges in high courts.

THE WAY FORWARD

The parliamentary standing committee doesn't seem impressed with the current pace. In its report, it categorically asserts that the "existing process is not working and needs to be re-engineered". It cautions that no mechanism will be effective unless timelines for completion of various stages of the appointment process are not only firmly laid down but also scrupulously followed by all authorities.

But India's problem of shortage of judges cannot be solved just by filling up vacancies. To achieve something like the judge-population ratio of leading countries, India needs to create more judges. In 1987, the Law Commission had recommended 50 judges per million people. Over three decades later, India has 21 judges per million persons. That too on the basis of sanctioned strength. There will be a steep dip if the actual working strength of judges is considered. Compare that to nearly 150 judges per million people in the US and China and over 50 in the UK.

Addition of manpower must start from lower courts, where recruitments happen either through state public service commissions or on recommendations by high courtss. In both, the state executive machinery plays a critical role. That's the reason Justice Ramana urged chief ministers to increase the sanctioned strength of judicial officers in subordinate courts.

Not just more justices, judicial infrastructure too must be improved. Since 2014, the Centre has given the states Rs 5,565 crore under the centrally sponsored scheme for development of infrastructure facilities in district and subordinate courts. Yet, infrastructure remains abysmal. Only 27 per cent court rooms have computers placed on the judge's dais for video conferencing; 26 per cent of court complexes do not have toilets for women, only 32 per cent of court rooms have separate record rooms, and 49 per cent courts don't have libraries. Rude reminders that the judicial system in India is still limping along on crutches. ■